

25STCV09420 25STCV09420

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-08

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Case Number: 25STCV09420 Hearing Date: September 8, 2026 Dept: 512

ARING DATE: Tues., September 8, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Newman

v. Ford Motor Company, et al. COMP.

FILED: 03-28-25

CASE NUMBER: 25STCV09420 FAC FILED: 08-18-25

NOTICE: OK

PROCEEDINGS: MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendant Ford Motor Company

RESP. PARTY: Plaintiff Chri Ann Newman

MOTION FOR JUDGMENT ON THE PLEADINGS

(Code Civ. Proc., § 438, et
seq.)

TENTATIVE RULING:

Defendant

Ford Motor Company's Motion for Judgment on the Pleadings is DENIED.

Moving party is ordered to

give notice of ruling.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on August 25, 2026 ☐ Late ☐ None

REPLY: Filed

on August 27, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On March 28, 2025, Plaintiff Chris Ann

Newman ("Plaintiff") filed the instant Lemon Law action against Defendants Ford Motor Company and Perry Ford Lincoln of San Luis Obispo ("Defendants") and Does 1-10.

On

August 18, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants and Does 1-10, alleging causes of action for Civil Code section 1793.2 violations, breach of the implied warranty of merchantability, and fraudulent inducement and concealment.

On

October 29, 2025, the Court overruled Ford Motor Company's Demurrer to the FAC. (10/29/25 Order.)

On June 25, 2026, Ford Motor Company filed the instant Motion for Judgment on the Pleadings (the "Motion") and request for judicial notice.

On August 25, 2026, Plaintiff filed an Opposition.

On August 27, 2026, Ford Motor Company filed a Reply.

II. Request for Judicial Notice

In conjunction with the Motion, Ford Motor Company requests the Court take judicial notice of a "[l]ist of all manufacturers that have elected to opt-in to Cal. Code of Civil Procedures § 871.20 et seq, as maintained on the California Department of Consumer Affairs' government website, as of June 25, 2026." (Motion, RJN, pp. 1-2, Exh. A.)

The Court DENIES this request as irrelevant.

III. Legal Standard

A defendant may move for judgment on the pleadings if either "[t]he court has no jurisdiction of the subject of the cause of action alleged in the complaint" or "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438.)

The standard for ruling on a motion for judgment on the pleadings is " 'essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.' " (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216; Barker v. Hull (1987) 191 Cal.App.3d 221, 224; Code Civ. Proc., § 438.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV.

Discussion

Ford Motor

Company moves for judgment on the pleadings on the first, second, third, and fourth causes of action in the FAC on the grounds these causes of action are time-barred by the statute of repose under Code of Civil Procedure section 871.21, and the fourth cause of action for breach of implied warranty is also barred by the statute of limitations. (Motion, pp. 1-10.)

In Opposition, Plaintiff

contends the new statute “changing the period of limitations cannot be applied retrospectively in this manner, where the end of the six years was prior to the effective date of the statute.” (Opp., pp. 1-4.) Further, Plaintiff contends none of the causes of action are barred by the statute of limitations. (Opp., pp. 5-9.) Should the Court find any deficiency in the FAC, Plaintiff requests the Court grant Plaintiff leave to amend. (Opp., pp. 9-10.)

In Reply, Ford

Motor Company contends the Opposition “relies on dubious authority to defend her facially deficient claims but fails to address the multiple deficiencies identified in Ford’s Motion.” (Reply, p. 1.) Ford Motor Company states Plaintiff’s claims are barred by the statute of repose, which is different than the statute of limitations bar, and Code of Civil Procedure section 871.21 is not being retroactively applied in this case. (Reply, pp. 1-2.) Further, Ford Motor Company emphasizes the argument in the Motion that statutes of repose are not subject to equitable tolling, and Plaintiff cannot meet her burden to plead statutory tolling. (Reply, pp. 2-5.) Ford Motor Company reiterates arguments raised in the Motion and requests the Court deny Plaintiff leave to amend the FAC. (Reply, pp. 5-8.)

Meet

and Confer

Before filing a

motion for judgment on the pleadings, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).)

Here, a meet and

confer declaration accompanies the Motion. (Motion, Liu Decl.) The meet and confer declaration states the parties’ counsel spoke by video conference on June 10, 2026, regarding the issues raised in the Motion to no avail. (Motion, Liu Decl.)

Thus, the meet

and confer requirement is satisfied. (Code Civ. Proc., § 439, subd. (a).)

Statute

of Repose – Causes of Action Nos. 1-4

Code of Civil

Procedure section 871.20 provides:

An action

covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b)

Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c) The time

periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

(1) As provided

by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.

(2) For the time

the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time

period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.

(Code Civ.

Proc., § 871.21, emphasis added.)

Plaintiff

alleges that on or about July 22, 2018, Plaintiff entered into a warranty contract with Ford Motor Company regarding the Subject Vehicle. (FAC ¶ 7.)

Plaintiff's FAC does not allege the delivery date of the Subject Vehicle.

Therefore, Ford Motor Company does not have a basis on the face of the pleading to argue the statute of repose has elapsed.

Accordingly, the

Motion is DENIED as to the first, second, third, and fourth causes of action on the basis of the statute of repose.

Statute of
Limitations – Cause of Action No. 4

As

to Ford Motor Company's contention that the fourth cause of action for breach of the implied warranty of habitability is barred by the requisite statute of limitations, the Court finds this argument has already been ruled on and rejected by Judge Leiter on October 29, 2025, when the Court overruled Ford Motor Company's demurrer to the FAC. (See 10/29/25 Order.) Ford Motor Company did not file a motion for reconsideration, and the Court does not find Ford Motor Company has shown there has been any material change in case law or statute since the ruling on the demurrer that would warrant the Court ruling on this argument again by way of the instant Motion. (Code Civ. Proc., § 438, subd. (g).)

In any event,
the Court does find that the
face of the FAC clearly and affirmatively shows the FAC is barred by any
pertinent statute of limitations given that the face of the FAC does not allege
the delivery date of the Subject Vehicle. (Lockley v. Law Office of
Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881
[“ ‘A demurrer on the ground of the bar of the statute of limitations will not
lie where the action may be, but is not necessarily barred.’ It must appear
clearly and affirmatively that, upon the face of the complaint, the right of
action is necessarily barred”], citations omitted; Ruiz Nunez v. FCA US LLC
(2021) 61 Cal.App.5th 385, 394; Civ. Code, § 1793.1; Mexia v. Rinker
Boat Co., Inc. (2009) 174 Cal.App.4th 1297.)

Accordingly, the
Motion is DENIED as to the fourth cause of action on the basis of the
statute of limitations.

Thus, the Motion
is DENIED.

V.

Conclusion

& Order

For the
foregoing reasons, Defendant Ford Motor Company's Motion for Judgment on the
Pleadings is DENIED.

Moving party is ordered to
give notice of ruling.